

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AURA DOLEA CASTANON,

Petitioner

VS.

HECTOR FIDENCIO PEREZ,

Respondent

) Case Number: FDI-19-791343

) Hearing Date: May 5, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER PROPERTY CONTROL, ENFORCEMENT OF FOAH TO SELL
PROPERTY AND REQUEST FOR ELISOR TO SIGN

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video. Husband's attorney shall be prepared to explain whether he notified Husband about Wife's Request for Order filed 3/17/2026 and the 5/5/2026 hearing date. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

At the hearing, the Court intends to adopt the following findings and orders, absent good cause shown.

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Aura Castanon (Wife) and Respondent Hector Perez (Husband) married on 9/11/2002 and separated on 3/5/2019, for a marriage of 16 years and 5 months. The parties have one adult child, Franchesco (DOB: 12/12/2005, age 20). Wife is represented by attorney Kathleen Morgan. Husband is represented by attorney Crisostomo Ibarra.
- 2) No Judgment has been entered in this matter to date.

1 3) On 6/2/2025, per the Findings and Order After Hearing filed 6/11/2025, Judge Costin made a
2 finding that the community property located at 1216 Newhall St. in San Francisco has a value of
3 \$840,000. The Court made the following orders: “6) On or before 9/30/25, Husband shall pay to
4 Wife a sum of \$135,828... In exchange, Wife shall quit-claim her right, title, and interest to the
5 home to Husband. After the successful completion of these transactions, Husband shall be
6 entitled to exclusive possession of the home, and Husband shall be solely responsible for all
7 mortgage payments on the home and shall hold Wife harmless therefrom... If Husband is unable
8 to pay Wife the sum of \$135,828, then it is ordered that the home be placed on the market and
9 sold. The net proceeds of the sale (after the payment of the outstanding mortgage, closing costs,
10 and real estate commission fees) shall be equally divided between the parties.”

11 4) Now on for hearing is Wife’s Request for Order filed 3/17/2026. Wife states Husband has not
12 paid the equalizing payment set forth in the Findings and Order After Hearing filed 6/11/2025
13 and, to her knowledge, has not made any efforts to sell the Newhall residence. Wife also states
14 Husband will not communicate with her. Wife states she contacted Husband’s attorney of record
15 who told her he has also not been able to communicate with Husband. Wife asks the Court to:

- 16 a. Order Husband to prepare the Newhall residence for sale no later than May 1, 2026;
 - 17 b. Order Husband to forthwith cooperate with realtor Mirna Tin of Real Estate Broker Firm
18 Keller Williams Santa Clara Valley, including executing a listing agreement, preparing
19 the Newhall residence for sale, signing any and all documents necessary to prepare the
20 property to be listed, to list the property, and sell the property within 48 hours of receipt
21 of the documents;
 - 22 c. Permit Petitioner to file an ex parte Request for Order asking the Court to appoint the
23 Clerk of the Court or Clerk’s Designee as elisor to sign any documents on Husband’s
24 behalf if Husband fails to comply with signing any documents necessary to effectuate the
25 orders set forth above;
 - 26 d. Order the proceeds of the sale of the home be divided equally pursuant to the Findings
27 and Order After Hearing filed 6/11/2025; and
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- e. Award Wife \$3,000 in Family Code section 271 attorney's fees sanctions be granted, to be paid from Husband's share of the net sale proceeds, due to Wife's needing to Wife to file this Request for Order.
- 5) On 3/17/2026, Wife's attorney Kathleen Morgan filed a declaration. Ms. Morgan states she has been hired by Wife through the low-fee panel of the San Francisco Bar Association. Ms. Morgan states she is charging Wife \$250 per hour and she has spent 6 hours on this motion to date. Ms. Morgan anticipates Wife will incur a total of \$3,000 in fees related to the instant motion.
- 6) On 3/18/2026, Wife filed a Memorandum in Support of Request for Order, citing Family Code section 271.
- 7) Per the Proof of Electronic Service filed 3/18/2026, Wife's Request for Order and related pleadings were emailed to Husband's attorney on 3/18/2026.
- 8) Husband did not file a Responsive Declaration.
- 9) The Court notes there is a hearing currently set for 7/2/2026 at 9:00 AM in Dept. 404 on Husband's attorney's request to be relieved as counsel, filed 4/10/2026.

B. Findings and Order

- 1) The Court hereby grants Wife's unopposed request.
- 2) No later than 6/1/2026, Husband shall prepare the residence located at 1216 Newhall St. San Francisco, CA 94124 for sale.
- 3) Mirna Tin of Real Estate Broker Firm Keller Williams Santa Clara Valley is hereby appointed as the real estate agent who shall assist the parties with preparing the Newhall residence for sale and to list, market, and sell the property.
- 4) Husband is ordered to fully cooperate with Ms. Tin regarding the home sale process, including following all reasonable recommendations related to preparing the home for sale and signing any and all documents necessary for the Newhall residence to be listed and sold within 48 hours of receipt of a request for signature on such documents.
- 5) If Husband fails to sign any documents necessary for the Newhall residence to be listed and sold, Wife may file an ex parte Request for Order asking the Court to appoint the Clerk of the Court or Clerk's Designee as elisor to sign any such documents. Wife shall attach to any such ex parte Request for Order a copy of the documents that require Husband's signature.

- 1 6) Effective immediately, both parties shall be CC'd on all communications with Ms. Tin.
- 2 7) The Court hereby grants to Wife \$3,000 in Family Code section 271 attorney's fees sanctions.
- 3 This shall be paid to Wife from Husband's share of the net sale proceeds.
- 4 8) Once the Newhall residence is sold, the net proceeds of the sale (after payment of the outstanding
- 5 mortgage, closing costs, and real estate commission fees) shall be equally divided between the
- 6 parties, except that Wife shall receive an additional \$3,000 from Husband's share of the net sale
- 7 proceeds for the attorney's fees sanctions awarded above.
- 8 9) Wife's attorney shall prepare the Findings and Order After Hearing.
- 9 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
- 10 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
- 11 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
- 12 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
- 13 proposed order after hearing directly to the court. Failure to submit the order after hearing within
- 14 10 days may allow the other party to prepare a proposed order and submit it to the court in
- 15 accordance with CA Rules of Court, Rule 5.125(d).
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